

25NNCV08622 25NNCV08622

County: los-angeles

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Case Number: 25NNCV08622 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

DEMURRER

Los

Angeles Superior Court Case # 25NNCV08622

MP: Defendant

Hlib Kryvonosov

RP: Plaintiff Bassam Shallhoob

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at
or by telephone at (818) 260-8412.

ALLEGATIONS:

Bassam Shallhoob ("Plaintiff") alleges

that on August 5, 2025, he entered into a written contract with Hlib Kryvonosov ("Defendant"). He alleges that Defendant delivered a 2016

Land Rover Range Rover Sport vehicle to Plaintiff's auto facility and

authorized Plaintiff to provide services pursuant to the Burbank Advanced

Diagnostics estimate, including inspection, towing, repairs, and storage. (FAC, Ex. A.)

Plaintiff alleges that he performed the services and provided Defendant

with an invoice, but Defendant failed to pay the amount due despite demand. Plaintiff alleges he suffered \$38,763 in

damages for towing, inspection fee, hazardous waste, dolly fee, shop supplies,

after-hour gate charge, and daily storage fees.

The First Amended Complaint ("FAC"), filed June 11, 2026,

alleges a single cause of action for Breach of Contract.

MOTION ON CALENDAR:

On July 15, 2026, Defendant filed a Demurrer to the FAC.

On August 3, 2026, Plaintiff filed

an opposition. On August 7, 2026,

Defendant filed a reply.

LEGAL STANDARD

The grounds for a

demurrer must appear on the face of the pleading or from judicially noticeable

matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311,

318.) A demurrer for sufficiency tests whether the complaint states a cause of

action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue

involved in a demurrer hearing is whether the complaint states a cause of

action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the

challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how

unlikely or improbable, the plaintiff's allegations must be accepted as true

for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural*

Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not

include contentions; deductions; conclusions of fact or law alleged in the

complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND
CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Sanders Decl., ¶12.)

REQUEST FOR JUDICIAL NOTICE:

Defendant requests
judicial notice of Exhibits: (A) the FAC; and (B) the complaint. The request is granted. (Evid. Code, § 452(d).)

ANALYSIS:

The elements for breach of contract are:

“(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Defendant demurs to the sole Breach of
Contract Cause of Action in the FAC, arguing that it fails to allege sufficient facts to constitute a cause of action and is uncertain because the nature of the contract has not been alleged, including whether the contract is written, oral, or implied by conduct.

The FAC alleges that the contract is
written and attaches Exhibit A. (FAC at

PLD-C-001(1) at § BC-1(a), Ex. A.) Exhibit

A includes Estimate #533 and #443 from Burbank Advanced Diagnostics with for a 2016 Land Rover Ranger Rover Sport vehicle.

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Estimate #533, created July 30, 2025, states the "Item" as "Labor"; the "Description" as "Vehicle doesn't start. Inspect and advice [sic]"; and the total price of \$300. The bottom of the estimate includes in italics: "x Hlib Kryvonsov" for the \$300 amount.

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Estimate #443, created August 5, 2025, seeks \$850 for towing from 710 and 60 freeway, \$450 for inspection fee, \$450 for hazardous waste, \$36,050 for storage fees from July 31, 2025 to September 22, 2025 at \$350 per day, \$450 for dolly fee, \$300 for after hours gate charge, and \$150 for shop supplies, or \$38,763 total. The bottom of Estimate #443 includes the "x" but there appears to be no signature. (The bottommost portion of Estimate #443 is cut off, so the Court cannot ascertain whether there was a handwritten or electronic signature.)

Plaintiff argues that the FAC attaches a signed authorization, which constitutes a valid written contract because it identifies the parties, Plaintiff as the vehicle owner, the specific vehicle, and the services performed.

Business & Professions Code, § 9984.9(a) states in relevant part:

(a) The automotive repair dealer shall give to the customer a written estimated price for labor and parts necessary for a specific job, except as provided in subdivision (e). No work shall be done and no charges shall accrue before authorization to proceed is obtained from the customer. No charge shall be made for work done or parts supplied in excess of the estimated price, or the posted price specified in subdivision (e), without the oral or written consent of the customer that shall be obtained at some time after it is determined that the estimated or posted price is insufficient and before the work not estimated or posted is done or the parts not estimated or posted are supplied. Written consent or authorization for an increase in the original estimated or posted price may be provided by electronic mail or facsimile

transmission from the customer. ...

(Bus. & Prof. Code, § 9884.9(a).)

Additionally, the California Code of Regulations, title 16, section 3353.1 states in relevant part:

(a) No diagnosis or repair, including no-charge and warranty repairs, shall commence and no charges shall accrue without specific authorization from the customer. Any estimate or revised work order provided to the customer shall be authorized by the customer or the customer's designee in written, oral, or electronic form.

(b) If the customer provides a written authorization, the automotive repair dealer shall capture his or her signature and record the date of signature on the estimate or on documents that supplement the estimate.

(16 C.C.R. § 3353.1(a)-(b).)

While Estimate #533 is potentially signed electronically, Estimate #443 bears no signature. Thus, Plaintiff at most has shown that Defendant signed a written authorization and estimate for the inspection work (dated July 30, 2025) with Burbank Advanced Diagnostics, but the subsequent work estimate (dated August 5, 2025) is not signed. As such, Plaintiff has not shown that Defendant consented to the charges or the work prior to them being performed.

Furthermore, while the estimates identify the subject vehicle, Estimate #443 does not identify the parties to the written estimates. It refers to Burbank Advanced Diagnostics in the letterhead with service writer "Daniel," but makes no mention of Plaintiff Bassam Shallhoob or Defendant Hlib Kryvonosov.

The demurrer to the complaint is sustained with leave to amend.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Hlib Kryvonosov's Demurrer came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The Demurrer to the FIRST AMENDED complaint is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

case management conference set september 9, 2026 is advanced and continued to november 4, 2026 at 9:00 am.

defendant
TO GIVE NOTICE.

IT IS SO ORDERED.